

STATE OF NORTH CAROLINA

File No.

2004CR000000118844-A

Scan No.(s)

New Hanover County

In The General Court Of Justice

☐ District ☐ Superior Court Division

STATE VERSUS

Name And Address Of Petitioner (type or print full name)

Maria-Alejandra O'Shaughnessy-Whitfield
1188 Upper Yadkin River Crossing Road, Apartment 14B

Winston-Salem

NC

Drivers License No.

State

Race

Sex

Date Of Birth

Full Social Security No.

Age At Time Of Offense

PETITION AND ORDER OF EXPUNCTION UNDER G.S. 15A-146(a) OR G.S. 15A-146(a1) (CHARGE(S) DISMISSED)

G.S. 15A-146, 15A-150

Name And Address Of Petitioner's Attorney For Expunction Petition

NOTE TO PETITIONER: List the arresting agency and any State or local government agency that has a record of your case. You **must** provide complete information for each agency. The clerk of superior court will send a copy of this order, if granted, to the agency name(s) and address(es) provided below. The clerk will **not** provide addresses for you. Do not list the courts, the State Bureau of Investigation, the Department of Adult Correction, or the Division of Motor Vehicles; if the order is granted, those agencies will be notified automatically. Do not list any private entity, like a company that provides criminal background checks. The clerk will not send a copy of this order to any entity that is not an agency of the State of North Carolina or one of its local governments. A private entity required to expunge records will be notified directly by the State or local agencies that distribute criminal justice information to that entity.

Name And Address Of Arresting Agency

Name And Address Of Other Agency (if any)

Name And Address Of Other Agency (if any)

☐ Check here to indicate that additional agencies and/or additional file nos. and offenses are listed on an AOC-CR-285 form that is attached to this petition. (attach form)

File No.(s)	Date Of Arrest	Offense Description	Date Of Offense	Date Of Dismissal

PETITION TO EXPUNGE

I hereby petition for an expunction pursuant to G.S. 15A-146(a) or (a1) and certify as follows:

- In this court of the county named above I was charged with (a) misdemeanor(s) or felony(ies) (or an infraction under G.S. 18B-302(i) prior to December 1, 1999), the file number(s) of which is/are set out above.
- The charge(s) listed above was/were disposed of by a dismissal that was not a G.S. 15A-1008 dismissal for lack of capacity to proceed.
- (if you are petitioning to expunge multiple dismissals under G.S. 15A-146(a1), check one of the following)

☐ a. I was charged with multiple offenses, and all of the charges were dismissed. I therefore am requesting the expunction of all the charges.

☐ b. I was charged with multiple offenses, and while the charges listed above were dismissed, the following charges resulted in a conviction on the day of the dismissal or had not yet reached final disposition: _____

(insert file no.(s) and offense description(s) of charges that were not dismissed). I therefore am requesting the expunction only of the dismissed charges listed above, and not all of the charges.

☐ 4. There is a civil revocation record that resulted from the offense(s) I am seeking to expunge.

I certify that this petition has been filed in this case and that the information set forth above is a complete and accurate statement of the information on file in the office of the clerk of superior court.

☐ No charge listed above was dismissed as the result of compliance with a deferred prosecution agreement or a conditional discharge and dismissal.

NOTE TO CLERK: If this box is checked, do not assess the \$175.00 fee.

Date	Name (type or print)	Signature	☐ Petitioner ☐ Petitioner's Attorney
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(Over)

AOC-CR-287, Rev. 12/25 (replaced AOC-CR-264 for G.S. 15A-146(a) and (a1) petitions)

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FINDINGS OF FACT

The Court makes the following findings of fact:

1. Petitioner was charged with those offenses indicated in the table on Side One.
2. Said charges were disposed of by a dismissal that was not a G.S. 15A-1008 dismissal for lack of capacity to proceed.
3. (If the defendant was charged with multiple offenses, check one of the following)

- ☐ a. The defendant was charged with multiple offenses, and all of the charges were dismissed.
- ☐ b. The defendant was charged with multiple offenses, and while the charges listed in the table on Side One were dismissed, there were additional charges that resulted in a conviction on the day of the dismissal or had not yet reached final disposition.

NOTE TO COURT: "If a person is charged with multiple offenses and any charges are dismissed, then that person or the district attorney may petition to have each of the dismissed charges expunged. If the court finds that all of the charges were dismissed, the court shall order the expunction. If the court finds that any charge resulted in a conviction on the day of the dismissal or had not yet reached final disposition, the court may order the expunction of any charge that was dismissed." G.S. 15A-146(a1).

- ☐ 4. There is a civil revocation record that resulted from the offense(s) the petitioner is seeking to expunge.
5. Expunction of the dismissed offense(s) listed on Side One ☐ should ☐ should not be granted. If not, it is because:

ORDER**Therefore, the Court hereby ORDERS:**

- ☐ 1. The petition is granted. It is ordered that any and all entries relating to the petitioner's apprehension, charge, trial, or conviction and any civil revocation of his/her drivers license resulting from the dismissed criminal charge shall be expunged from the records of the court. All law enforcement agencies, the Department of Adult Correction, the Division of Motor Vehicles, and any other State or local government agency identified on Side One and on any AOC-CR-285 form that is attached to this petition shall expunge from all official records any entries relating to the person's charge, conviction, if any, and any civil revocation of his/her drivers license resulting from the dismissed criminal charge. No agency shall expunge a record of a civil revocation entered pursuant to G.S. 20-16.2, no agency shall expunge a record of a civil revocation prior to the final disposition of any pending civil or criminal charge based upon the civil revocation, and the Division of Motor Vehicles shall not expunge records for which expunction is otherwise prohibited by G.S. 15A-151.
- ☐ 2. For the reason(s) identified in Finding No. 5, the petition is denied.

NOTE TO CLERK: If denied, file this Order in the case file. Upon expiration of the deadline for appeal from a denial of this Order, destroy any documentation provided with the petition, such as a criminal history report. If granted, send a certified copy of this Order to the petitioner at the address listed on Side One or an updated address as provided by the petitioner.

Date	Name Of Presiding Judge (type or print)	Signature Of Presiding Judge
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CERTIFICATION BY CLERK

I hereby certify that this form is a true and complete copy of the original in this case, and if granted, a certified copy of this Order was sent on the date shown below to the petitioner, the State Bureau of Investigation, the Department of Adult Correction, the Division of Motor Vehicles, and to the arresting agency and any other State or local government agency identified on Side One and on any attachment to this petition.

Date	Name (type or print)	Signature Of Clerk	☐ Dep. CSC ☐ Asst. CSC ☐ Clerk Of Superior Court	SEAL
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NOTE TO CLERK: If granted, **always** send a certified copy of this Order under seal to the petitioner, to **all** the agencies listed in Certification By Clerk above, and to the NCAOC. Send copies for the arresting agency and additional agencies to the addresses provided by the petitioner. Send SBI, DAC, DMV, and NCAOC copies to:

State Bureau of Investigation Attn: Expunction Unit 3320 Garner Road Raleigh, NC 27610	NC Department of Adult Correction Attn: Combined Records Section 4226 Mail Service Center Raleigh, NC 27699-4226	NC Division of Motor Vehicles, Driver and Vehicle Services, Driver Assistance Branch Attn: Hearings/Adjudication Unit 3118 Mail Service Center Raleigh, NC 27699-3118	NC Administrative Office of the Courts Attn: Records Officer PO Box 2448 Raleigh, NC 27602
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NOTE TO PETITIONER: If this petition is granted, the clerk of superior court will send you a certified copy of the final order for your records at the address listed on Side One. If you move, you must notify the clerk in writing of your change of address in order to receive a certified copy. After the case is expunged, the clerk of superior court will have no record of the case and will be unable to provide you with any documentation of the case. This includes the expunction order; it will be destroyed with the case file.

**INSTRUCTIONS FOR PETITION AND ORDER OF EXPUNCTION
UNDER G.S. 15A-146(a) OR G.S. 15A-146(a1) (CHARGE(S) DISMISSED)
FORM AOC-CR-287, Rev. 12/25**

The procedure for completion of the AOC-CR-287, Petition And Order Of Expunction Under G.S. 15A-146(a) or G.S. 15A-146(a1), is as follows:

1. **Print clearly and legibly, using only black ink.** If you wish to submit a typed petition, the form is available electronically on the NCAOC's website at www.nccourts.gov/documents/forms. In the "Contains" field, enter the number of the petition, AOC-CR-287. Searching by the form number will provide you with a link to a fillable PDF version of the form.
2. No order should be entered until the form has been completed and signed by the petitioner.
3. The petitioner or attorney should complete all offense information on Side One of the form from the court file. Please pay special attention to correctly identifying the arresting agency(ies) and any other State or local agency that has a record of the case. Do not list the courts, the State Bureau of Investigation, the Department of Adult Correction, or the Division of Motor Vehicles; if the order is granted, those agencies will be notified automatically. Do not list any private entity, like a company that provides criminal background checks. The clerk will **not** send a copy of the order to any entity that is not an agency of the State of North Carolina or one of its local governments. A private entity required to expunge records will be notified directly by the State or local agencies that distribute criminal justice information to that entity.
4. A fee of \$175.00 must be paid to the clerk at the time the petition is filed. There is no fee for an expunction if the charge was dismissed for any reason other than compliance with a deferred prosecution agreement or a conditional discharge and dismissal.
5. If an order of expunction is entered, the clerk makes copies of the order, completes "Certification By Clerk" on each copy, and sends certified copies to the petitioner, the State Bureau of Investigation, the Department of Adult Correction, the Division of Motor Vehicles, the arresting agency and any other State or local government agency identified on the petition, and the NCAOC.
NOTE: The clerk of superior court will send you a certified copy of the final order. If you move, you must notify the clerk in writing of your change of address in order to receive a certified copy. After the case is expunged, the clerk will have no record of the case and will be unable to provide any documentation of the case. This includes the expunction order; it will be destroyed with the case file.
6. The clerk retains the original order of expunction to be disposed of with the papers in this case.
7. If the petition is denied, the clerk will retain the original of the denied petition, but any information from the SBI or NCAOC shall be destroyed, unless the court orders otherwise.

NOTE TO PETITIONER: *The expunction of your case information from the records of the court and of other State and local government agencies does not guarantee that the information will be expunged from all other sources. Private companies routinely acquire copies of criminal records from State and local criminal justice agencies. Certain private entities are required to expunge your case information upon receiving notice of the expunction order, but there may be a delay between entry of the order of expunction and deletion from the entity's records. Further, that duty to expunge does not apply to all private entities. If a private entity distributes information about your expunged case, contact the private entity to determine which government agency was the source of the information, and then contact that government agency to determine whether or not the expunction order was received. If the private entity claims that the NCAOC was the source of the information, contact the NCAOC's Remote Public Access office at rpa@nccourts.org or (919) 890-2220 to investigate the entity's claim.*

(TYPE OR PRINT IN BLACK INK)
STATE OF NORTH CAROLINA

New Hanover County

File No.

2004CR000000118844-A

In The General Court Of Justice

☐ District ☐ Superior Court Division

Name Of Applicant

Maria-Alejandra O'Shaughnessy-Whitfield

Street Number And Street Name, Including Apartment Or Unit Number If Applicable

City, State And Zip Code

Winston-Salem NC 27101-2214

Full Permanent Mailing Address Of Applicant (if different than above)

Telephone Number Of Applicant

(336) 555-0199 ext. 4417

Date Of Birth

1968-12-31

CIVIL AFFIDAVIT OF INDIGENCY

G.S. 7A-450 et seq.

☐ Plaintiff

☐ Defendant

Applicant: (answering this question is optional) Have you ever served in the United States Armed Forces? ☐ Yes ☐ No

MONTHLY INCOME (money you make)

MONTHLY EXPENSES (money you pay out)

Employment - Applicant

\$

Number Of Dependents

Name And Address Of Applicant's Employer
(If not employed, state reason; if self-employed, state trade)

Shelter ☐ Buying ☐ Renting

\$

Food (including Food Stamps)

\$

Utilities (power, water, heating,
phone, cable, etc.)

\$

Other Income (Welfare, Food Stamps,
S/S, Pensions, etc.)

\$

Health Care

\$

Installment Payments

☐ Vehicle ☐ Other

\$

Employment - Spouse

\$

Name And Address Of Spouse's Employer

Car Expenses (gas, insurance, etc.)

\$

Support Payments

\$

Other: (specify)

\$

Total Monthly Income

\$

Total Monthly Expenses

\$

DESCRIPTION OF ASSETS AND LIABILITIES

ASSETS
(things you own)

LIABILITIES
(amounts you owe)

Cash On Hand And In Bank Accounts (list name of bank and account type,
do not list account no.)

\$

Money Owed To Or Held For Applicant

\$

Motor Vehicles (list make, model, year)

\$

(Fair Market Value)

\$

(Balance Due)

Real Estate

\$

(Fair Market Value)

\$

(Balance Due)

Personal Property

\$

(Fair Market Value)

\$

(Balance Due)

Other Debts

\$

Last Income Tax Filed 20 _____

☐ Refund

☐ Owe

\$

\$

Other

\$

\$

Total Assets And Liabilities

\$

\$

Bond Type

Amount

\$

By Whom Posted

NOTE: Read the notice on the reverse side before completing this form.

(Over)

NOTICE TO PERSONS REQUESTING INDIGENCY OR PARTIAL INDIGENCY DESIGNATION

1. When answering the questions on the Affidavit Of Indigency (*reverse side of this form*), please do not discuss your case with the interviewer. The interviewer can be called as a witness to testify about any statements made in his/her presence. Please wait and speak with your lawyer. Do not ask the interviewer for any advice or opinion concerning your case.
2. **A designation of indigency relieves your obligation to pay all of the arbitration fee. A designation of partial indigency requires you to pay your appropriate percentage of your pro rata share of the arbitration fee prior to arbitration. Failure to pay the arbitration fee will result in the entry of a civil judgment against you, which will accrue interest at the legal rate set out in G.S. 24-1 from the date of the entry of judgment. Your North Carolina Tax Refund and/or North Carolina Lottery winnings may be taken.**
3. The information you provide may be verified, and your signature below will serve as a release permitting the interviewer to contact your creditors, employers, family members, and others concerning your eligibility for an indigency designation. A false or dishonest answer concerning your financial status could lead to prosecution for perjury. See G.S. 7A-456(a) ("A false material statement made by a person under oath or affirmation in regard to the question of his indigency constitutes a Class I felony.").

Under penalty of perjury, I declare that the information provided on this form is true and correct to the best of my knowledge, and that I am financially unable to pay all or part of the arbitration fees prior to the arbitration. I now request that I be designated indigent or partially indigent. I authorize the Court to contact my creditors, employers, or family members, any government agencies or any other entities listed below concerning my eligibility for such designation.

I further authorize my creditors, employers, or family members, any governmental agencies or any other entities listed below to release financial information concerning my eligibility for such designation upon request of the Court.

Governmental Agencies Or Other Entities Authorized To Be Contacted And/Or To Release Information

SWORN/AFFIRMED AND SUBSCRIBED TO BEFORE ME		<i>Date</i>
<i>Date</i>	<i>Signature</i>	<i>Signature Of Applicant</i>
☐ <i>Deputy CSC</i> ☐ <i>Assistant CSC</i> ☐ <i>Clerk Of Superior Court</i> ☐ <i>Magistrate</i>		<i>Name Of Applicant (type or print)</i>
☐ <i>Notary</i>	<i>Date My Commission Expires</i>	☐ <i>Plaintiff</i> ☐ <i>Defendant</i>
SEAL	<i>County Where Notarized</i>	